



STANDING ORDER NO. SPUWAC/02/2022

FUNCTIONING OF DISTRICT UNIT FOR WOMEN & CHILDREN

1. INTRODUCTION

There shall be a District Unit for Women & Children (DUW&C) in each District to be headed by ACP/DUW&C under the overall supervision of DCP/District to monitor, coordinate and closely supervise the issues related to women and children in their respective Districts.

2. DIVISION OF DUW&C:-

There shall be following two Divisions in DUW&C:-

- I. Counselling & Mediation
- II. Special Juvenile Police Unit (SJPU)

3. FUNCTIONS/ ROLE & RESPONSIBILITIES

I. COUNSELLING DIVISION

A. OBJECTIVE

The objective of Counseling Division will be to provide a conducive platform to the parties to settle their differences through the intervention of trained police personnel & professional Social Workers/Counselors deployed by SPUWAC. This Division will be headed by an Inspector assisted by sufficient subordinate staff.

B. PROCESS OF COUNSELLING

- a. This Division will follow the process as laid down in SO No. SPUWAC/04/2022 & directions issued by Hon'ble High Court of Delhi in order dated 04.08.2008, in matter of **Chander Bhan Vs. State.**

C. TIME PERIOD TO COMPLETE THE ENQUIRY/COUNSELLING PROCEEDINGS

In view of the guidelines laid down by the Hon'ble High Court of Delhi in Crl. M.C. 2013/2016, titled Mahesh & Ors. Vs. State of NCT of Delhi & Ors., the enquiry officer in DUW&C will try to conclude the enquiry/counseling proceedings within a period of 03 months. In case, the Enquiry Officer needs more time to conclude the enquiry, he shall make a formal request, duly recommended by ACP concerned, to DCP District for extension of time period justifying the requirement of additional time. After scrutinizing the grounds, the DCP may grant the extension of time, which shall not be more than three (03) months. Beyond this period, the time period shall not be extended in normal circumstances. However, in case further extension is required due to any extra ordinary circumstances, then a well-grounded proposal shall be submitted to the Joint Commissioner of Police/concerned Range who shall examine the proposal and if he finds that it is necessary in the interest of the parties, he may grant extension of time to conclude the enquiry. E.O. shall conclude his/her enquiry within the given time.

D. DESIGNATION OF ENQUIRY OFFICERS

The Enquiry Officer shall preferably be a women officer of the Rank of SIs/ASIs, well trained and well equipped with the abilities of perseverance, patience and for bearance. In case, the E.O. is a male Police officer, he shall be accompanied by a female police officer during the enquiry proceedings.

II. MEDIATION DIVISION

a. OBJECTIVE

To provide a platform to the parties to settle their issues through the intervention of professional Mediators appointed by Delhi High Court Legal Services Committee.

b. PROCESS OF MEDIATION

This Division shall follow the same process of Mediation as laid down in SO No. SPUWAC/04/2022.

4. SPECIAL JUVENILE POLICE UNIT (SJPU):-

Each SJPU of Districts shall be headed by ACP/CAW Cell & SJPU of Units shall be headed by ACP/HQ under overall control of

DCP/Districts & Units concerned. ACP CAW/Districts & ACP/HQ (Units concerned) will coordinate, monitor and closely supervise the working of Juvenile Welfare Police Officers (JWPOs) dealing with issues pertaining to children (Child in conflict with Law and Child in Need of Care & Protection) in due compliance of SO No. Lic. & Leg./05/2022.

ACP/SJPUs and Inspector/SJPUs/Districts & units concerned will attend periodical meetings held by Jt.CP/Addl. CP/DCP/SPUWAC in connection with implementation of provisions laid down in the JJ Act/JJ Rules/S.O. etc.

5. DUTIES OF DUW&C:-

Apart from conducting Counseling& Mediation Proceedings, the DUW&C will perform the following duties:-

- i. Monitor the investigation of all cases of u/s 304-B and 306 IPC, 498A/406 IPC, apart from cases of rape against women and POCSO cases registered in the District. It may also investigate such cases which are transferred to it by the DCP or the senior officers at PHQ.
- ii. Enquire into the complaints received by it and submit the outcome of enquiry before the DCP of the concerned District for registration and investigation of cases by concerned police station, which may arise out of such enquiries. However, the DUWC shall not enquire into complaints which have already been dealt with by any of the other DUW&C or SPUWAC unless specifically directed to do so by Jt. CP/concerned.
- iii. Conduct anti-eve-teasing drives in their respective districts in coordination with local police station.
- iv. Organize training programmes in un-armed combat for school/college girls.
- v. Monitor functioning of Women Safety Committees in Police Stations consisting of Heads of Schools/colleges, RWA/ MWA, women NGOs and other prominent personalities.
- vi. Conduct regular meetings with representatives of various NGOs, working in the field for empowerment of women regularly to discuss the improvements in safety and security of women in Delhi.

- vii. Organize Gender Sensitization and Legal Awareness programmes in schools/colleges/educational institutions in association with NGOs to create a gender-friendly environment.
- viii. Ensure effective implementation of various women safety schemes such as Nirbheek, Naazuk, Shishtachar etc. initiated by Delhi Police.

6. PROCEDURE FOR TRANSFER OF CASES:-

DCP/Districts and Senior Officers at their discretion may transfer cases of dowry deaths, rape and POCSO in their districts to DCW&C for further investigation.

7. CLOSE SUPERVISION BY SUPERVISORY OFFICERS

- i. ACP/DUW&C will ensure that the Enquiry Officers/Social Workers/Professional Counselors attached with DUW&C are following due procedure as laid down in SO No. SPUWAC/04/2022 while conducting counseling & mediation proceedings.
- ii. ACP/DUW&C will co-ordinate the functioning of Rape Crisis Intervention Center set up in the District to provide necessary psychological, social, medical, legal aid to the victim of sexual assault expeditiously.
- iii. DCP/SPUWAC will hold meetings with all the officers of DUW&C on quarterly basis. The progress of enquiry into the complaints and investigation of cases will be reviewed in this meeting. DCP/SPUWAC will forward his/her observation to Distt/DCP who will take suitable action. The overall supervision of DUW&C shall be the responsibility of District DCP.

8. SPECIAL INTIMATION TO THE COMPLAINANT

- i. ACP/DUW&C will inform the complainant about the failure of counseling/mediation proceedings and also provide the details of FIR and Investigating Officer dealing with investigation of her case.
- ii. ACP/Sub-division concerned will also ensure that during the course of investigation the IO must maintain contact with the complainant and keep her informed about the important developments in the case under the scheme "AAPKA UPDATE" (SO No. Vig. & Pub. Tpt./03/2021).

9. TRAINING

- i. All officers on posting to the DUW&C will undergo a basic Orientation Course for 3 days to be organized by DCP/SPUWAC in Nanakpura from time to time. Thereafter, they shall attend course periodically as and when organized by DCP/SPUWAC. They will also attend other professional courses as and when conducted by or nominated by the District DCsP.
- ii. Training Programme on POCSO, sexual offences Crime against women, Human Trafficking, Gender Sensitization Course, be conducted on regular basis in coordination with NGOs/DSLISA, by the District DCsP.

10. REPORTS TO BE SENT BY THE DUW&Cs TO DCP/SPUWAC

- i. Monthly report on :
 - a. Disposal of complaints of matrimonial complaints
 - b. 498A/406 IPC cases
 - c. Cases registered under POCSO Act
 - d. Cases registered under JJ Act
- ii. Six Monthly Action Taken Report on basis of SO No. Lic. & Leg./05/2022 to be sent to Juvenile Justice Unit of SPUWAC.
- iii. Monthly updated list of Child Welfare Police Officers.
- iv. Updated list of Child Welfare Committees.

11. RECORD TO BE MAINTAINED BY DUW&C:-

- DUW&C will maintain record of all cases related to matrimonial disputes u/s 498A, 406IPC after failure of counselling/mediation proceedings and status of sexual assault cases, dowry death cases, cases registered u/s 306 IPC and POCSO Act registered in police stations.
- DUW&C will maintain record of all counselling/mediation proceedings. However, it will ensure that the evidence/documents collected during the counseling/mediation proceedings, which are confidential in nature, shall not be made part of the case file by the IO after registration of a case.

12. SUPERSESION CLAUSE

This Standing Order supersedes the previous Standing Order No.99/1994 issued vide No.XXII/107/SPL/31064-144/C&T(AC-II) dated 29.11.1994.

13. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana

(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.

10.5.22

No. 22001-2250/Record Branch/PHQ dated Delhi, the 10-05-2022

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
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